ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: 320532
NAME: Kevin Y. Jacobson, Esq. (SBN 320532); Nicholas Yowarski, Esq. (SBN 338165)
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ATTORNEY FOR (name): Plaintiff: GREGORIO GARCIA

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
10/29/2024
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS: 400 McAllister Street
CITY AND ZIP CODE: San Francisco, CA 94102-4515
BRANCH NAME: CIVIC CENTER COURTHOUSE

PLAINTIFF/PETITIONER: GREGORIO GARCIA
DEFENDANT/RESPONDENT: GENERAL MOTORS LLC

CASE MANAGEMENT STATEMENT

CASE NUMBER: CVPS2304241

(Check one): [x] **UNLIMITED CASE** (Amount demanded exceeds $35,000) [ ] **LIMITED CASE** (Amount demanded is $35,000 or less)

A **CASE MANAGEMENT CONFERENCE** is scheduled as follows:
Date: November 13, 2024 Time: 10:30 a.m. Dept.: 610 Div.: Room:
Address of court *(if different from the address above):*

[x] **Notice of Intent to Appear by Telephone, by *(name):*** Kevin Y. Jacobson

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties** *(answer one):*
   a. [x] This statement is submitted by party *(name):* Plaintiff: GREGORIO GARCIA
   b. [ ] This statement is submitted **jointly** by parties *(names):*
2. **Complaint and cross-complaint** *(to be answered by plaintiffs and cross-complainants only)*
   a. The complaint was filed on *(date):* May 8, 2024
   b. [ ] The cross-complaint, if any, was filed on *(date):*
3. **Service** *(to be answered by plaintiffs and cross-complainants only)*
   a. [x] All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
   b. [ ] The following parties named in the complaint or cross-complaint
      (1) [ ] have not been served *(specify names and explain why not):*
      (2) [ ] have been served but have not appeared and have not been dismissed *(specify names):*
      (3) [ ] have had a default entered against them *(specify names):*
   c. [ ] The following additional parties may be added *(specify names, nature of involvement in case, and date by which they may be served):*
4. **Description of case**
   a. Type of case in [x] complaint [ ] cross-complaint *(Describe, including causes of action):*
   See Attachment 4a

PLAINTIFF/PETITIONER: GREGORIO GARCIA DEFENDANT/RESPONDENT: GENERAL MOTORS LLC	CASE NUMBER: CVPS2304241

4. b. Provide a brief statement of the case, including any damages *(if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief):*

[x] *(If more space is needed, check this box and attach a page designated as Attachment 4b.)*

5. **Jury or nonjury trial**

The party or parties request [x] a jury trial [ ] a nonjury trial. *(If more than one party, provide the name of each party requesting a jury trial):*

6. **Trial date**

a. [ ] The trial has been set for *(date):*

b. [x] No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint *(if not, explain):*

c. Dates on which parties or attorneys will not be available for trial *(specify dates and explain reasons for unavailability):*

7. **Estimated length of trial**

The party or parties estimate that the trial will take *(check one)*

a. [x] days *(specify number):* 5-7

b. [ ] hours (short causes) *(specify):*

8. **Trial representation** *(to be answered for each party)*

The party or parties will be represented at trial [x] by the attorney or party listed in the caption [ ] by the following:

a. Attorney:

b. Firm:

c. Address:

d. Telephone number:

e. Email address:

f. Fax number:

g. Party represented:

[ ] Additional representation is described in Attachment 8.

9. **Preference**

[ ] This case is entitled to preference *(specify code section):*

10. **Alternative dispute resolution (ADR)**

a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.

(1) For parties represented by counsel: Counsel [x] has [ ] has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.

(2) For self-represented parties: Party [x] has [ ] has not reviewed the ADR information package identified in rule 3.221.

b. **Referral to judicial arbitration or civil action mediation** (if available).

(1) [ ] This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.

(2) [ ] Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.

(3) [x] This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. *(specify exemption):*

The amount in controversy exceeds $50,000.00 and involves multiple causes of actions pursuant to rule 3.811(b)(8).

PLAINTIFF/PETITIONER: GREGORIO GARCIA DEFENDANT/RESPONDENT: GENERAL MOTORS LLC	CASE NUMBER: CVPS2304241

10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in *(check all that apply and provide the specified information):*

	The party or parties completing this form **are willing** to participate in the following ADR processes *(check all that apply):*	If the party or parties completing this form in the case **have agreed** to participate in or have already completed an ADR process or processes, indicate the status of the processes *(attach a copy of the parties' ADR stipulation):*
(1) Mediation	[x]	[x] Mediation session not yet scheduled [ ] Mediation session scheduled for (*date*): [ ] Agreed to complete mediation by (*date*): [ ] Mediation completed on (*date*):
(2) Settlement conference	[x]	[x] Settlement conference not yet scheduled [ ] Settlement conference scheduled for (*date*): [ ] Agreed to complete settlement conference by (*date*): [ ] Settlement conference completed on (*date*):
(3) Neutral evaluation	[ ]	[ ] Neutral evaluation not yet scheduled [ ] Neutral evaluation scheduled for (*date*): [ ] Agreed to complete neutral evaluation by (*date*): [ ] Neutral evaluation completed on (*date*):
(4) Nonbinding judicial arbitration	[ ]	[ ] Judicial arbitration not yet scheduled [ ] Judicial arbitration scheduled for (*date*): [ ] Agreed to complete judicial arbitration by (*date*): [ ] Judicial arbitration completed on (*date*):
(5) Binding private arbitration	[ ]	[ ] Private arbitration not yet scheduled [ ] Private arbitration scheduled for (*date*): [ ] Agreed to complete private arbitration by (*date*): [ ] Private arbitration completed on (*date*):
(6) Other (*specify*):	[ ]	[ ] ADR session not yet scheduled [ ] ADR session scheduled for (*date*): [ ] Agreed to complete ADR session by (*date*): [ ] ADR completed on (*date*):

PLAINTIFF/PETITIONER: GREGORIO GARCIA DEFENDANT/RESPONDENT: GENERAL MOTORS LLC	CASE NUMBER: CVPS2304241

11. **Insurance**

a. [ ] Insurance carrier, if any, for party filing this statement *(name):*

b. Reservation of rights: [ ] Yes [ ] No

c. [ ] Coverage issues will significantly affect resolution of this case *(explain):*

12. **Jurisdiction**

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

[ ] Bankruptcy [ ] Other *(specify):*

Status:

13. **Related cases, consolidation, and coordination**

a. [ ] There are companion, underlying, or related cases.

(1) Name of case:

(2) Name of court:

(3) Case number:

(4) Status:

[ ] Additional cases are described in Attachment 13a.

b. [ ] A motion to [ ] consolidate [ ] coordinate will be filed by *(name party):*

14. **Bifurcation**

[ ] The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action *(specify moving party, type of motion, and reasons):*

15. **Other motions**

[ ] The party or parties expect to file the following motions before trial *(specify moving party, type of motion, and issues):*

16. **Discovery**

a. [ ] The party or parties have completed all discovery.

b. [x] The following discovery will be completed by the date specified *(describe all anticipated discovery):*

Party	Description	Date
Plaintiff	Written Discovery	May 2025
Plaintiff	Depositions of Dealership Technicians and PMQ	May 2025
Plaintiff	Depositions of Defendant's PMK	May 2025
Plaintiff	Expert Depositions	Per Code

c. [ ] The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated *(specify):*

PLAINTIFF/PETITIONER: GREGORIO GARCIA DEFENDANT/RESPONDENT: GENERAL MOTORS LLC	CASE NUMBER: CVPS2304241

17. **Economic litigation**

a. [ ] This is a limited civil case (i.e., the amount demanded is $35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.

b. [ ] This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case):*

18. **Other issues**

[ ] The party or parties request that the following additional matters be considered or determined at the case management conference *(specify):*

19. **Meet and confer**

a. [x] The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain):*

b. [ ] After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify):*

20. Total number of pages attached *(if any):* 2

I am completely familiar with this case and will be fully prepared to discuss the status of discovery and alternative dispute resolution, as well as other issues raised by this statement, and will possess the authority to enter into stipulations on these issues at the time of the case management conference, including the written authority of the party where required.

Date: October 29, 2024

Nicholas Yowarski, Esq.
(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

[ ] Additional signatures are attached.

SHORT TITLE:	CASE NUMBER:
GARCIA, GREGORIO v. GENERAL MOTORS LLC	CGC-24-614473

ATTACHMENT *(Number):* 4a

(This Attachment may be used with any Judicial Council form.)

The instant matter involves a 2019 GMC Sierra manufactured by Defendant.
Plaintiff's causes of action are numbered as follows:

1. VIOLATION OF SONG-BEVERLY ACT - BREACH OF EXPRESS WARRANTY
2. VIOLATION OF SONG-BEVERLY ACT - BREACH OF IMPLIED WARRANTY
3. VIOLATION OF SONG-BEVERLY ACT - SECTION 1793.2

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

SHORT TITLE: GARCIA, GREGORIO v. GENERAL MOTORS LLC	CASE NUMBER: CGC-24-614473

ATTACHMENT *(Number):* 4b

(This Attachment may be used with any Judicial Council form.)

On or about August 25, 2023, Plaintiff purchased a 2019 GMC Sierra ("Subject Vehicle"), which was manufactured by Defendant, from Defendant's authorized retail facility, PRICE FORD OF TURLOCK, for approximately $57,816.80.

Defendant provided Plaintiff with express warranties accompanied the sale of the vehicle to Plaintiff by which Defendants undertook to preserve or maintain the utility or performance of Plaintiff's vehicle or to provide compensation if there was a failure in such utility or performance.

The vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty. More specifically, the Subject Vehicle contained or developed defects, including (but not limited to) defects related to the electrical and transmission systems during the warranty period. Plaintiff delivered the vehicle to Defendants authorized repair facilities multiple times. Defendant failed to repair the vehicle after a reasonable number of opportunities.

Defendant violated the Song-Beverly Consumer Warranty Act by not replacing the vehicle or repurchasing the vehicle after being given a reasonable number of opportunities to repair the vehicle.

Plaintiff seeks rescission of the purchase contract, restitution of all monies expended for the vehicle, incidental and consequential damages, civil penalties in the amount of two times Plaintiff's actual damages, diminution in value, prejudgment interest, reasonable attorneys' fees and costs of suit, general, special, and actual damages according to proof at trial. Due to Defendant's willful failure to repurchase or replace the Subject Vehicle, Plaintiff's restitution damages, which are still being incurred and are subject to change, are in excess of $173,450.40. Plaintiff's Attorney's fees and costs are expected to be $20,000.00.

Defendant has answered the Complaint and the matter is at issue. Plaintiff requests that the Court set trial.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

PROOF OF SERVICE

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 10880 Wilshire Blvd, Suite 1600, Los Angeles, CA 90024.

On October 29, 2024, I served the following document(s) described as:

CASE MANAGEMENT STATEMENT

That document was served on parties herein in this proceeding by placing true copies of the original in enclosed, sealed envelope(s) addressed as follows:

SEE ATTACHED SERVICE LIST

[](BY MAIL) I am "readily familiar" with the practices of QUILL & ARROW, LLP, in collecting and processing correspondence and documents for mailing. Under that practice, documents for mailing would be deposited with the US Postal Service on that same day this affidavit is signed with postage fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if the postal cancellation date is more than 1-day after the day of deposit for mailing the affidavit. [CCP § 1013]

[] **(BY OVERNIGHT MAIL)** I am "readily familiar" with the practices of the QUILL & ARROW, LLP, for collection and processing of documents for mailing via overnight delivery. I caused such document(s) to be placed in a sealed envelope designated by the overnight service carrier, addressed to the person(s) on whom it is to be served pursuant to the attached service list, and deposited said envelope in a box or other facility regularly maintained by the overnight service carrier with delivery fees paid or provided for. [CCP § 1013(c)]

[**X**] **(BY ELECTRONIC MAIL)** I caused the document(s) to be transmitted by electronic mail to the e-mail addresses for each party indicated on the attached service list.

[] (BY PERSONAL DELIVERY) I caused to be delivered such envelope by hand to the addressee at the address indicated on the attached service list.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on October 29, 2024.

/s/*Evelyn Pickens*
Evelyn Pickens

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